Tentative Rulings
July 31, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (https://www.sb-court.org/divisions/civil/civil-tentative-rulings) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on the tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests the parties to provide further argument at the hearing. If directed, attendance at the hearing is mandatory. The prevailing party will serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the department if you would like a copy of this form. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

12. *Franco, et al, v. American Honda Motor Co., Inc., et al,* Case No. CIVSB2218870
Plaintiffs' Motion for Attorneys' Fees and Costs
7/31/26, 9:00 a.m., S-17

Tentative Rulings

The Court would **GRANT** the motion and award fees in the lodestar amount of $9,533, with costs of $2,042.03. Thus, the total award is $11,575.03.

Case Summary

This is a lemon law case. In essence, Plaintiffs originally alleged that they bought a new 2021 vehicle on August 15, 2021. It came with express and implied warranties from Defendant. (Compl., ¶8.) Plaintiffs allege that Defendant breached the warranties because the vehicle suffered from serious defects and nonconformities, including certain transmission problems that Defendant was unable to repair despite being afforded numerous opportunities to do so. (*Id.*, ¶11.) Plaintiffs assert a "9-speed transmission defect" and assert that Defendant knew of the defect and concealed its existence. (*Id,* ¶¶17-24.) Plaintiffs assert that they brought the vehicle in for repairs on February 3, 2022, when it would intermittently fail to go into idle and intermittently accelerate to around 20 mph. Plaintiffs brought their car in again on March 14; April 4; and April 27, 2022, with no results. On August 29, 2022, they filed this instant action asserting (1) breach of express warranty (*Song-Beverly*); (2) breach of implied warranty (*Song-Beverly*); and (3) Fraudulent Inducement – Concealment. On April 12, 2023, Plaintiffs filed the operative First Amended Complaint (FAC), asserting the same causes of action.

Relevant here, the parties filed a notice of settlement and Plaintiff is the prevailing party.

Statement of Law

In general, attorneys' fees, costs, and expenses are recoverable under the Act, Civil Code section 1794, subdivision (d), which provides:

> If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

To prevail under the Act, the buyer must have recovered damages or other legal or equitable relief. (Civ. Code, § 1794(a).)

Analysis

Here, Plaintiffs seek attorneys' fees in the amount of $9,533 (per stated lodestar) and costs in the amount of $2,042.03. Defendant argues rates and hours worked are unreasonable.

<u>As to attorney rates:</u> The rates are somewhat high for the named partner given rates in the geographic region. However, provided testimony supports the proposed rates.

Here, to substantiate his firm's hourly rate, Attorney Kirnos details that he is a managing partner at Knight Law Group and has been since 2022. (¶ 23.) He has been prosecuting consumers' claims since 2013, and joined the firm as Partner in 2017. (¶ 24.) He is also a member and presenter at conferences, such as the National Association of Consumer Affairs, etc. (¶ 27.) Although there is not a detailed amount of information regarding the timekeepers, there is sufficient information to assess that their hourly rates, in the context of lemon law, are reasonable. In addition, "[t]he court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate." (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009.) Thus, the Court would allow the requested rates.

<u>As to Hours:</u> Defendant asserts that the hours requested are unreasonable given that this is a straightforward lemon law case and argues fees should be reduced to no more than $7,117.03 ($5,075 in fees and $2,042.03 in costs).

Defendant takes issue with the billing in light of six timekeepers, and it asserts that the work was not efficient; the entries were vague; and the firm used block billing. Too many attorneys can lead to excessive time, but it is not the number of attorneys *per se* that can render the time expended unreasonable. Instead, it is inefficiencies that may arise with too many attorneys, the duplication or overbilling for tasks or because the firm engages in "padding, over-conferencing, attorney stacking (multiple attendance by attorneys at the same court functions), and excessive research." (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 272.) Although there were many timekeepers, there does not appear to be duplication that it resulted in inflated billing.

Finally, Defendant argues that fees associated with the fraud claim are not permitted. However, "[w]hen a cause of action for which attorney fees are provided by statute is joined with other causes of action for which attorney fees are not permitted, the prevailing party may recover only on the statutory cause of action." (*Akins v. Enterprise Rent-A-Car Co. of San Francisco* (2000) 79 Cal.App.4th 1127, 1133.) Thus, the joinder of causes should not dilute the right to attorneys' fees. Thus, [a]ll expenses incurred on the common issues qualify for an award." (*Akins, supra,* 79 Cal.App.4th at p. 1133.)

<u>As to costs:</u> "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc. § 1032, subd. (b).) Absent statutory authority, the Court has no discretion to deny costs to the prevailing party. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 129.) Here, costs appear supported.

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